

24STCV34086 24STCV34086

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Case Number: 24STCV34086 Hearing Date: July 20, 2026 Dept: 732

Hetty Diep v. Ford Motor Company, et al.

Monday, July 20, 2026

CASE NUMBER: 24STCV34086

OPPOSED

Defendant Ford Motor Company's Demurrer to the First
Amended Complaint

Facts:

This is a lemon law action. The First Amended Complaint ("FAC") alleges as follows. Plaintiff Hetty Diep("Plaintiff") purchased a 2018 Lincoln MKZ on June 27, 2018, with an express written warranty. (FAC ¶ 7.) The vehicle was delivered with defects that could not be remedied within the warranty period. (FAC ¶¶ 11–22.)

Procedural History: Plaintiffs

filed the Complaint on December 24, 2024, and filed the FAC on August 5, 2025, alleging six causes of action:

1.

Civ. Code § 1793.2, subd. (d)

2.

Civ. Code § 1793.2, subd. (b)

3.

Civ. Code § 1793.2, subd. (a)(3)

4.

Breach of Implied Warranty of Merchantability

5.

Negligent Repair

6.

Fraudulent Concealment

Defendant

filed the present demurrer and motion to strike on September 12, 2025.

Plaintiff

filed oppositions on July 7, 2026.

Defendant

filed replies on July 13, 2026.

Analysis

I.

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See *id.* § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Id.* at

p. 318; see also *Hahn v. Mirda*

(2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.

[Citation.]”)

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer

for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Mahan v.*

Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (*Schifando v. City of Los Angeles*, *supra*, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (*Krawitz v. Rusch* (1989) 209 Cal.App.3d 957, 967.)

Defendant Ford

Motor Company (“Defendant”) argues that the first through fourth and sixth causes of action under the Song Beverly Act and for fraudulent inducement are time-barred. (Demurrer at pp. 12–13.)

“An action for breach of any

contract for sale must be commenced within four years after the cause of action has accrued.” (Com. Code § 2725, subd. (1).) “A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time

of such performance the cause of action accrues when the breach is or should have been discovered.” (Com. Code § 2725, subd. (2).) This statute applies to Song-Beverly claims. (See *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 214.)

Here, Plaintiff alleges purchase of the vehicle (or entry into the warranty contract) on June 27, 2021. (FAC ¶ 7.) Thus, without benefit of the discovery rule or some other tolling doctrine, Plaintiff’s first through third causes of action would have been time-barred by June 27, 2022. But Plaintiff filed the original complaint in this action on December 24, 2024, some years beyond the limitations period.

“Where a claim is time-barred on its face, the plaintiff must specifically plead facts that would support equitable tolling.” (*Long v. Forty Niners Football Co., LLC* (2019) 33 Cal.App.5th 550, 555.) The “discovery rule. . . postpones accrual of a cause of action until the plaintiff discovers, or has reason to discover, the cause of action.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 807.) “A plaintiff has reason to discover a cause of action when he or she ‘has reason at least to suspect a factual basis for its elements.’” (*Ibid.*) Courts “look to whether the plaintiffs have reason to at least suspect that a type of wrongdoing has injured them.” (*Ibid.*) The accrual of a cause of action in relation to the discovery rule is normally a question of fact. (*Id.* at p. 810.)

On a demurrer, the court must take as true statements such as that as plaintiff “did not discover, nor suspect, nor was there any means through which her reasonable diligence would have revealed, or through which she would have suspected,” the cause of an injury was the defendant in question. (*Fox, supra*, 35 Cal.4th at p. 811.) However: “A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.” (*Id.* at p. 808.) The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer. (*Ibid.*)

Plaintiff here argues that the

claims are not time-barred on their face, as they run from date of discovery of the breach, not from the date of sale. (Opposition at pp. 3–4.) But where Plaintiff relies on delayed discovery for the timeliness of the claims, they must plead particular facts justifying application of the rule. Here, the FAC does not plead such facts, but only a conclusory invocation of various tolling doctrines (FAC ¶¶ 31–32) and the general attestation that when Plaintiff took the vehicle in for repairs, it was falsely represented that the defect had been repaired. (FAC ¶¶ 12–14.) No particular facts as to discovery or diligence are alleged. Accordingly, the demurrer is properly SUSTAINED with leave to amend as to the first through third causes of action.

The fourth cause of action for breach of implied warranty, meanwhile, is time-barred as a matter of law.

This is because the discovery rule stated in Commercial Code § 2725 does not apply to implied warranty claims. The language of the discovery exception is that a cause accrues upon delivery of the good, “except that where a warranty explicitly extends to future performance of the goods.” (Com. Code § 2725, subd. (2), emphasis added.) An implied warranty by definition cannot “explicitly extend[] to future performance of the goods,” because an implied warranty contains no explicit terms. Courts have accordingly held that “the exception must be narrowly construed, and that it applies only when the seller has expressly agreed to warrant its product for a specific and defined period of time.” (Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 130.) “Because an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods.’” (Id. at p. 134.) Thus the demurrer is properly SUSTAINED without leave to amend as to the fourth cause of action.

Plaintiff’s fraud claim is also untimely by the same reasoning. There is a three-year statute of limitations for “[a]n action for relief on the ground of fraud or mistake. The cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.” (Code Civ. Proc., § 338, subd. (d.) Plaintiff’s fraud claim would be barred, absent application of the discovery rule, by June 27, 2021. (FAC ¶ 7.) As noted above, Plaintiff pleads no facts justifying application of the discovery rule or other equitable tolling doctrine. Thus the demurrer is properly SUSTAINED with leave to amend as to the sixth cause of action.

Defendant finally argues that

Plaintiff can allege no claim for negligent repair because such a claim is barred by the economic loss rule, and because Plaintiffs would have incurred no damages for repairs incurred under warranty. (Demurrer at pp. 21–22.) But the negligent failure to provide professional services contracted for may give rise to tort liability: “A contract to perform services gives rise to a duty of care which requires that such services be performed in a competent and reasonable manner. A negligent failure to do so may be both a breach of contract and a tort. [Citation.] In such a hybrid circumstance, the plaintiff is entitled to pursue both legal theories until an occasion for an election of remedies arises.” (Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group (2006) 143 Cal.App.4th 1036, 1056.) Negligent repair claims fit into the rubric described. And Although Defendants argue that Plaintiffs have not suffered damages, Plaintiffs allege the contrary. (FAC ¶ 57.) These allegations are taken as true on demurrer.

Accordingly, the demurrer is

SUSTAINED without leave to amend as to the fourth cause of action for breach of implied warranty, and SUSTAINED with leave to amend as to first through third causes of action and the sixth cause of action for fraud. The demurrer is OVERRULED as to the fifth cause of action for negligent repair. Any amended pleading shall be filed within 20 days of this order.

Superior Court of California

County of Los Angeles

Department 732

HETTY

DIEP,

Plaintiffs

v.

FORD MOTOR COMPANY et al.,

Defendants.

Case No.:

24STCV34086

Hearing Date: July 20, 2026

[TENTATIVE] RULING RE:

Defendant

Ford Motor Company's Demurrer to the First Amended Complaint

Defendant

Ford Motor Company's Demurrer to the First Amended Complaint is SUSTAINED without leave to amend as to the fourth cause of action for breach of implied warranty, and SUSTAINED

with leave to amend as to the first, second, third, and sixth causes of action.

The demurrer is OVERRULED as to the fifth cause of action for negligent repair.

Any amended pleading shall be filed within 20 days of this order.

Defendant to give notice.

Dated: July 20, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court